

Track 1 — Chapter Build Pass

MPEP Chapter 1900 · Protest

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: A Pre-Grant Third-Party Tool (Corrected From Earlier Note)

Note: an earlier summary in this study set incorrectly described Chapter 1900 as covering inter partes reexamination — that topic is actually MPEP Chapter 2600. Chapter 1900 covers protest practice: a pre-grant mechanism letting third parties raise prior art against a pending application, with a participation model similar to ex parte reexamination.

Rule 1: What a Protest Is (§1901)

PLAIN ENGLISH

A **protest** is a submission by a member of the public raising issues (typically prior art or other patentability concerns) against a **pending** patent application, intended for consideration by the examiner during prosecution. This is a pre-grant mechanism — distinct from post-grant tools like ex parte reexamination, IPR, or PGR.

EXAMPLE

A third party aware of highly relevant prior art against a competitor's still-pending application can file a protest raising that art, hoping the examiner considers and applies it during prosecution — rather than waiting until after the patent grants to challenge it.

QUIZ

A protest is filed against:

- (A) An already-issued patent
- (B) A pending patent application
- (C) An abandoned application only
- (D) A PTAB decision

Rule 2: Timing Limitation on Protests (§1901.03)

PLAIN ENGLISH

A protest must generally be filed before the application is either **published** (if filed by someone other than the applicant, there are specific timing rules tied to publication) or, in some circumstances, before a **notice of allowance** issues — filing a protest too late in prosecution risks it not being fully considered before grant.

EXAMPLE

A third party who wants to ensure their protest is considered should generally file it as early as possible relative to the application's publication or before a notice of allowance issues, rather than waiting until prosecution is nearly complete.

QUIZ

What is a practical risk of filing a protest very late in prosecution, close to or after a notice of allowance?

- (A) None, timing never matters for protests
 - (B) It may not be fully considered before the application is allowed/granted
 - (C) It automatically converts to an IPR petition
 - (D) It automatically becomes untimely and is discarded regardless of content
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Rule 3: Protestor's Limited Participation (§1901.02)

PLAIN ENGLISH

Similar in spirit to ex parte reexamination, a protestor generally has **no further right to participate** in the prosecution after filing the protest — they cannot participate in interviews, receive correspondence about the application's prosecution, or file further submissions relating to the same protest without meeting specific requirements for additional submissions.

EXAMPLE

After filing a protest with supporting prior art, the protestor generally cannot then request updates on how the examiner handled it, attend an interview, or freely file follow-up submissions — their role is limited to the initial, properly filed protest itself (absent specific circumstances allowing more).

QUIZ

After filing a protest, what is the protestor's typical level of ongoing participation in the application's prosecution?

- (A) Full participation rights, like a co-applicant
 - (B) Very limited — generally no further right to participate after the protest is filed
 - (C) The right to attend all examiner interviews
 - (D) The right to receive all future Office actions automatically
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. Can a protest be filed against an already-issued patent?

- (A) Yes, at any time
- (B) No — protests target pending applications, before grant
- (C) Yes, but only within 3 months of issuance
- (D) Yes, if filed jointly with a reissue application

2. What is a practical risk of filing a protest very late in prosecution?

- (A) None
- (B) It may not be fully considered before the application is allowed/granted
- (C) It automatically voids the application
- (D) It converts to a reexamination request

3. After filing a protest, does the protestor generally retain ongoing participation rights in the prosecution?

- (A) Yes, full rights
- (B) No — participation is generally very limited after filing
- (C) Yes, but only for interviews
- (D) Yes, if they pay an additional fee

Memorize This: Key Tests & Terms

- Protest = **pre-grant** tool against a **pending** application — not for issued patents.
- Filing **early** (relative to publication/notice of allowance) matters — late protests risk inadequate consideration.
- Protestor participation is **sharply limited** after filing — same theme as ex parte reexamination.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: What a Protest Is (§1901)

A protest is filed against:

Answer: B

Protests are a pre-grant tool, aimed at pending applications — once a patent issues, the relevant mechanisms shift to reissue, reexamination, or IPR/PGR instead.

Rule 2: Timing Limitation on Protests (§1901.03)

What is a practical risk of filing a protest very late in prosecution, close to or after a notice of allowance?

Answer: B

Protests filed too late risk not being meaningfully considered before grant — timing matters even though there isn't necessarily one single universal hard deadline in every scenario.

Rule 3: Protestor's Limited Participation (§1901.02)

After filing a protest, what is the protestor's typical level of ongoing participation in the application's prosecution?

Answer: B

Protests share the ex parte reexamination model of sharply limited third-party participation after the initial filing — this is a consistent theme across several third-party challenge mechanisms in the MPEP.

Chapter Close-Out Quiz

1. (B)

Protests are pre-grant only, aimed at pending applications — post-grant challenges use different mechanisms (reissue, reexamination, IPR/PGR).

2. (B)

Late-filed protests risk not being meaningfully considered before the application is allowed or granted.

3. (B)

Like ex parte reexamination, protest practice sharply limits the third party's ongoing participation after the initial filing.